THE NATIONAL COMPANY LAW TRIBUNAL

PRINCIPAL BENCH

NEW DELHI

COMPANY PETITION NO. CAA-290 (PB) 2017

Under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

In the matter of
Scheme of Amalgamation of

M/s Lakra Fabrics Private Limited — Transferor Company

WITH

M/s Lakra Industries Limited — Transferee Company

Judgment delivered on: ***28.08.2018***

CORAM:

CHIEF JUSTICE (Rtd.) M.M. KUMAR, Hon'ble President

S. K. MOHAPATRA, Hon'ble Member (T)

For Petitioners: Mr. Sanjiv Kumar, Advocate.

For Official Liquidator: Mr. Amish Tondon, Advocate

For IT Department: Mr. Divey Kant, Advocate

For Regional Director: Ms. Sonam Sharma, Company Prosecutor

ORDER

S. K. Mohapatra, Member

While dictating the order in the present second motion petition No. CAA 290 (PB) 2017, it is seen that public notice for the date of hearing of the second motion petition including inviting objections to the proposed Scheme, in terms of Rule 16(1) of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in FORM-3A under NCLT rules, 2016 has not been made.

Even in the first motion application in respect of the proposed Scheme, bearing CA CAA No. 38/PB/2017, there had been no public notice as the meetings of shareholders and creditors of both the petitioner companies were dispensed with.

It is pertinent to mention here that reports of Regional Director, Official Liquidator as well as of the Income Tax Department have already been filed.

Be that as it may, in order to safeguard the public interest not only public notices are to be issued inter-alia inviting objections but also the petitioners are required to file affidavit that pursuant to such public notice no objection has been received in respect of the proposed

Scheme. Accordingly, in the absence of public notice inviting objections to the proposed Scheme, it would not be proper to accord sanction to the Scheme.

In that view of the matter the petitioner companies are directed to comply the following:

1. *The notice of the next date of hearing in terms of Rule 16 of Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in FORM-3A under NCLT rules, 2016 shall be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.*

2. *Both the Petitioner companies shall at least 7 days before the next date of hearing of the Petition file an affidavit in relation to paper publication effected as well as in relation to objection received, if any.*

3. *The next date of hearing of the Petition shall be on **08.10.2018** for the consideration of the approval of the Scheme of Amalgamation as contemplated between the Petitioner Companies.*

Let copy of the order be served to the parties.

-Sd/-

(M.M. KUMAR) 28.08.2

PRESIDENT

-Sd/-

(S. K. MOHAPATRA)

MEMBER (T)

Deepak Kumar